

25STCV20188 25STCV20188

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Case Number: 25STCV20188 Hearing Date: June 25, 2026 Dept: 529

JUAN NAVARRO, ET AL. VS GENERAL MOTORS, LLC

DEMURRER

TO THE FIRST AMENDED COMPLAINT

Date

of Hearing: June 25, 2026 Trial Date: None

set

Department: 529 Case No.: 25STCV20188

Moving

Party: Defendant General

Motors LLC

Responding

Party: Plaintiffs Juan Navarro and

Cristina Torres

Meet

and Confer: Yes. (Perez Decl.)

BACKGROUND

This is a lemon law action. On July 1,

2025, Plaintiffs Juan Navarro and Cristina Torres filed a complaint against

Defendant General Motors LLC for various violations of the Song-Beverly

Consumer Warranty Act as well as Fraudulent Inducement – Concealment. On March

30, 2026, Plaintiffs filed a First Amended Complaint.

[TENTATIVE]

RULING

Defendant General Motors LLC's Demurrer to the First Amended

Complaint is OVERRULED.

DISCUSSION

Defendant General Motors LLC demurs to the First Amended Complaint

filed by Juan Navarro and Cristina Torres on the grounds that Plaintiff's

fourth cause of action for breach of the implied warranty is time-barred by the

applicable four-year statute of limitations.

California Commercial Code section 2725 provides that the statute

of limitations for a breach of warranty claim arising from the sale of goods is

four years. (See Comm. Code, § 2725; see also *Mills v. Forestex Co.*

(2003) 108 Cal.App.4th 625, 642.) A breach of warranty occurs when tender of

delivery is made, except “[a] cause of action for breach of warranty of future performance . . . accrues upon discovery of the breach.” (Comm. Code, § 2725; Mills, supra, 108 Cal.App.4th at 642.)

GM argues based on the complaint, it appears the vehicle was delivered on May 13, 2020. Because a breach of implied warranty cause of action accrues when the sale is made, Plaintiff’s breach of implied warranty cause of action accrued on that date and expired four years later on May 12, 2024.

Plaintiff, however, did not file suit until July 1, 2025. GM relies on Cardinal Health 301, Inc. v. Tyco Elecs. Corp. (2008) 169 Cal.App.4th 116, 134. In Cardinal, the court held “[w]hen [Commercial Code section 2725] adopted the UCC version of the statute of limitations, it expressed the clear intent to follow the uniform rule which established tender of delivery as the accrual date, unless the plaintiff shows the warranty ‘explicitly extends to future performance.’ (§ 2725, subd. (2).)” (Cardinal Health 301, Inc., supra, 169 Cal.App.4th at p. 132.) As a result, GM contends this claim is time barred.

In opposition, Plaintiffs argue the Commercial Code expressly allows delayed discovery and Plaintiffs have pled delayed discovery of latent defects that could not be discovered prior to their manifesting and requiring repairs. Moreover, this court previously addressed this issue in a demurrer to the original complaint, and rejected GM’s argument that the statute of

limitations may not be tolled by delayed discovery. (Minute Order, March 19, 2026.) Plaintiffs also cite to *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 for the notion “[t]he implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” Plaintiffs also argue Defendants fail to disclose to the court that Cardinal Health applies only to implied warranty claims arising under the California Commercial Code. Here, Plaintiffs’ claims are alleged under the Song-Beverly Consumer Warranty Act.

The court finds Plaintiffs have sufficiently alleged delayed discovery for the purposes of a demurrer. While *Mexia* holds “[i]n the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery[]”, this does not mean the claim accrues at that moment for statute of limitations purposes. Plaintiffs have now alleged delayed discovery due to Defendant’s issuance of various TSBs and Recalls purporting to be able to fix various symptoms of the defects and Defendant’s failure to disclose to Plaintiff the true character, quality, and nature of the Defendant Vehicles suffering from the Defects. (FAC ¶¶31-34.)